

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

February 28, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Dr. Rinne, agenda items #16, and #23(b) and (c) were removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 14, 2011. Motion (per Consent Agenda) carried.

Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Inquiry was made concerning the following vouchers: Accurate Construction and Electrical Services (\$5,585.00), replace fixtures with energy efficient light fixtures at Transfer Station; Creative Concrete, Inc. (\$8,255.00), off-site improvements utilizing escrow account funds; Labor Ready (\$4,733.37), temporary staffing at the Transfer Station; Maxwell Photography (\$496.00), portraits to update Police Dept. picture board; Health Reach (\$300), deposition expense involving a workers compensation claim, and Aavon Moving and Storage (\$175.00), rent for 2 storage container units at Depot Plaza. Providing information on the aforementioned vouchers for their respective areas/projects were Jim Elias, Public Works Director; Doug Vetter, City Engineer; Brian Kozak, Chief of Police; Dan White, City Attorney, and Carol Intlekofer, City Clerk. Upon query, Mr. Elias also provided information on staffing levels for the Sanitation Division and possible positions to be filled in the near future. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a Public Hearing to receive public comments and input for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery and winery permits) filed with the City Clerk's Office. City Clerk Carol Intlekofer noted for the record that the following current liquor licensees did not file for renewal

or were not eligible to submit a renewal application for the 2011-2012 licensing term: Wyo-Mex II, Inc. d/b/a On the Border (bar & grill liquor license); Mantiff Cheyenne Hospitality, LLC d/b/a Ramada Hitching Post Inn (retail liquor license); Primos Cheyenne d/b/a Scotty's Pizza Factory (restaurant liquor license), and Jose Luis Gomez-Salcedo d/b/a Los 3 Caballos (restaurant liquor license). Upon inquiry, Officer Steve Neisen, Police Dept., provided information on compliance checks conducted for licensees' TIPS (Training for Intervention ProcedureS) training records, and Police Chief Brian Kozak reviewed underage compliance checks recently conducted, and stated he would be visiting with one licensee who had failed two compliance checks. He advised the department hopes to conduct compliance checks throughout the year as well as offering an on-line electronic option for licensees to keep up with employee TIPS training requirements. Upon inquiry, City Attorney Dan White briefly reviewed the status of the Hitching Post retail liquor license relative to the current licensee's bankruptcy status, and explained that the current licensee/Chapter 7 trustee had responsibility to file for renewal, of which they did not do. He explained instead the licensee attempted to transfer the license, which did not move forward, and that the renewal application filing deadline had now passed. Upon further inquiry regarding TIPS training, Chief Kozak and Officer Neisen advised an interpretation from the Court clarified new employees have 90 days in which to receive TIPS training. Officer Neisen reviewed ordinance language and suggested a review of current city code wording for possible clarification. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the applications to Finance Committee.

“An Ordinance amending Section 9.16.100 (B), Open House Assembly, of Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming, pertaining to the definition of ‘Adult’ and providing a penalty for violations.” Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Discussion included the following topics: Whether the ordinance will make a difference as a deterrent to curb underage drinking/hosting of parties; penalty clause; current fines assessed by municipal court judges and offenses requiring a “must appear” in court; concerns with individuals who are 21 years of age or older providing alcohol to family members or friends who are minors, and strengthening the penalty for minor in possession (MIP) offenses and contributing to the delinquency of a minor. Upon inquiry regarding citations issued pursuant to a recent underage party involving alcohol, Police Chief Brian Kozak advised the 18 year old hosting the party was cited with a minor in possession violation and the parent was cited for contributing to the delinquency of a minor. Chief Kozak clarified the municipal judge has the authority to determine what offenses require a court appearance. Motion carried. Voting “yes” – Mr. Allen, Ms. Broyles, Mayor Kaysen, Dr. Rinne, Mr. Spiker and Mr. Valdez. Voting “no” – Ms. Ash, Mr. Brown, Mr. Collins and Mr. Pierson. (#3913)

“An Ordinance amending Section 5.12.060, Sales and Consumption--Restrictions, of Chapter 5.12, Alcoholic Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming, to authorize the issuance of a Malt Beverage Permit or Catering Permit limited to malt beverages, with open container waiver, in conjunction with adult softball/baseball games and tournaments at the Pioneer Park Baseball Complex.” Major Dorr, speaking for himself and also on behalf of members of First Baptist Church, expressed support for the Cheyenne Grizzlies baseball team and activities but spoke in opposition to the ordinance.

He cited concerns regarding beer sales as a revenue source for the team; alcohol consumption and sales in the proximity of youth; ball games as a family oriented event; TIPS compliance; liability and responsibility; potential negative influence on youth attending the games, and repercussions of serving malt beverages at ball games. He offered ideas on other ways for the Grizzlies to raise funds. Ron Kailey, Cheyenne Grizzlies owner, spoke in favor of the ordinance and stated many fans have requested that malt beverages be served at the ball games, that all servers will be TIPS trained, and that he would like the opportunity to provide sales. Reporting for Finance Committee, Mr. Valdez moved to approve on second reading, seconded by Ms. Ash. Mr. Valdez moved to amend Section 5.12.060, Subsection 10(c) by removing the word "will" and replacing it with the word "shall", seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Valdez voting "no". Mr. Valdez moved to amend to add a new paragraph (d) in Subsection 10 to read as follows: "The dispensing and consumption boundary shall be signed "No one under the age of 21 years allowed," and "No alcoholic beverages allowed outside the dispensing and consumption boundary," seconded by Mr. Pierson. John Palmer questioned wording of the proposed amendment relative to whether the location of the consumption area would be in a good location in which to view the game. Discussion included the following topics: City staff involved in approving dispensing and consumption areas; consumption vs. non-consumption areas; keeping family members together; local fans vs. those in attendance supporting an opposing ball team being seated in the same consumption area, and City's current procedures in reviewing and determining approval for sales and consumption areas. Upon inquiry, John Knepper, Staff Attorney, clarified the amendment provides for the dispensing and consumption area(s) to be accessed only by those individuals 21 years of age or older. Further discussion included: Purpose of the amendment (separation of minors from alcohol dispensing and consumption area, and notification that beverages must stay within the designated boundaries); alcohol consumption separation area from minors; Youth Alternatives facility located across the street; consistency in application of requirements relative to other City-owned property where alcohol and youth are present at community events; concerns with alcohol presence for family oriented events on City property; responsible drinking practices; separating family members attending games; commitment by the Grizzlies owner to monitor the area and provide security, and state-wide "Where Do You Draw The Line" campaign. Motion to amend failed. Voting "yes" -- Mr. Collins, Mr. Pierson and Mr. Spiker. Voting "no" -- Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Dr. Rinne, Mr. Valdez, and Mayor Kaysen. Upon inquiry, Rick Parish, Parks and Recreation Director, provided information on special events upon Parks and Recreation City-owned properties and review of proposed designated dispensing and consumption areas by various City staff. Further comments followed on other parks and areas within the City where malt beverage sales and consumption is allowed. Upon inquiry, City Clerk Carol Intlekofer explained the current malt beverage permit application and staff review process. Discussion continued on dispensing/consumption areas; consistency in applying requirements; basic intent of the ordinance; proposed ordinance wording that adds games not just softball tournaments as is currently applicable to Converse and Brimmer ball parks; number of permits an applicant can apply for within a calendar year, and consumption permits vs. malt beverage permits for sales involving consumption areas. Upon inquiry, Mr. Knepper and Ms. Intlekofer provided information on Section 5.12.060, Subsection C. 2. of the ordinance affiliated with consumption permits (no sales) vs. malt beverage permits (sales). Mr. Kailey confirmed Cheyenne Grizzlies is a for-profit organization, clarified fans are requesting malt beverages at games and stated

although sales would provide funds to the Grizzlies, making a profit was not a driving force for requesting the ordinance change. He reviewed how sales at games would be monitored; noted that many other similar baseball leagues around the state provide beer sales; cited a scenario involving another team in the state that had inquired about playing in Cheyenne, due to a temporary problem with their baseball field, but that they requested malt beverages be available, and responded to questions regarding anticipated number of games where malt beverages would be sold during the team's season, noting his intent to cease sales at the 7th inning based on policies at other sports facilities. Main motion as amended carried. Voting "yes" – Mr. Allen, Ms. Ash, Mr. Brown, Mr. Collins, Dr. Rinne and Mayor Kaysen. Voting "no" – Ms. Broyles, Mr. Pierson, Mr. Spiker and Mr. Valdez.

"An Ordinance amending Ordinance No. 3419, which established a new compensation schedule for members of the City Council of the City of Cheyenne, to clarify the manner in which compensation is to be computed, and providing for an effective date." Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

"An Ordinance repealing in its entirety, Chapter 8.44, Solid Waste, and creating a new Chapter 8.44, Solid Waste, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming." Rick Fierro, President, RAM Trucking; Drew Kelley, Wyoming Disposal Systems, and Jim Clark, Countryside Disposal, each spoke in opposition to the ordinance with regard to private businesses providing roll-off container services. Topics and concerns presented included: Difficulty private businesses have in competing with the City in the area of providing roll-off container services; proposed changes contained in the ordinance that will affect their businesses and employees; construction and demolition waste, and recyclable disposal services by the private sector; investment in the community by private businesses; City roll-off fee structure, and current restrictions private haulers have in offering roll-off container services within the City. Frank Cole, developer, discussed automated curbside pickup of solid waste and recyclables and his concerns regarding unsightly container storage placement on non-pickup days; proposed schedule of pickups included in the ordinance, and support for free enterprise relative to private haulers. John Palmer questioned what new changes were being proposed in the ordinance vs. current City Code. Mr. Valdez moved to approve on second reading, seconded by Mr. Brown. Mr. Brown moved to amend by substitute ordinance, seconded by Mr. Valdez. Upon inquiry, Jim Elias, Public Works Director, advised the substitute addresses the allowable practice of bringing recyclables to the City blue bins by amending Section 8.44.010, Subsection F. to add two sentences at the end of the paragraph as follows: "Waste generated outside the city may not be brought into the city for disposal. Waste generated outside the city is prohibited from being placed into alleys, vacant lots, residential or commercial containers within the City (including those located in parks or other city facilities). County residents may use private haulers or dispose of waste at the transfer station. THIS PARAGRAPH DOES NOT PROHIBIT COLLECTORS OF RECYCLABLE MATERIAL GENERATED OR COLLECTED OUTSIDE THE CITY FROM BRINGING SUCH MATERIAL INTO THE CITY AND PLACING IT INTO THE BLUE BIN CONTAINERS OR DROPPING IT AT THE TRANSFER STATION; SUBJECT TO THE FEES, LIMITATIONS AND REQUIREMENTS OF THIS CHAPTER. RECYCLABLE MATERIAL GENERATED OR COLLECTED OUTSIDE THE CITY MAY NOT BE PLACED INTO RESIDENTIAL OR COMMERCIAL RECYCLE CONTAINERS

INSIDE THE CITY NOR MAY THEY BE PLACED OUTSIDE BLUE BIN CONTAINERS IF THOSE CONTAINERS ARE FULL.” Pursuant to comment on lack of a penalty affiliated with disposing of items on the ground if blue bins are full, Mr. Elias advised their goal is to encourage recycling from residents outside the city limits, and noted further review of littering penalties will be conducted prior to final reading of the ordinance. Upon inquiry, he discussed wording of “containers” in Section 8.44.030, Subsection E.6.; provided information on the City’s responsibility for the collection, transfer and disposal of all waste within the City; private vs. City roll-off container services, which has not been specifically codified in the past; collection programs utilized in other communities, and explained that the City’s roll-off container operations are not an expansion (i.e. increasing the number of containers) of current services. Mr. Elias stated staff is still working on the comprehensive draft of the Solid Waste Master Plan, which involves reviewing and analyzing several areas, including financial and operational aspects as well as the Integrated Solid Waste Plan. Discussion continued on the cost to process waste; whether the issue involving private businesses to provide roll-off containers was instrumental to be included in the proposed ordinance at this time; allowing private roll-off providers to participate in discussions concerning proposed ordinance changes; ordinance wording relative to billing (errors) adjustments and time frame in which customers must provide notification of same, and City’s cost to dispose of waste and maintain City landfill. During discussion, Mr. Elias provided further information on the topics raised. Dr. Rinne raised a point of order concerning the allowance of further public comment. Mayor Kaysen ruled he would deviate slightly from the normal public participation process and would allow additional comments from the public to be made following a 10 minute recess. Mayor Kaysen reconvened the meeting at 8:35 p.m. The following individuals spoke further on the proposed ordinance: Mr. Cole; Mr. Fierro; Brian Clark, Countryside Disposal, and Mr. Kelley. Comments included concerns with customers responsibility to notice and request an adjustment for any discrepancies in billing statements with a 60 day time limit; blue bins usage volume on weekends; clarification needed for ordinance wording regarding roll-off containers, and respect for services provided by private businesses. Motion to amend by substitute carried. Voting “yes” -- all members of the governing body with the exception of Ms. Ash and Ms. Broyles voting “no”. Discussion continued on ordinance Section 8.44.050, Subsection B. 1. involving residential pickup services and proposed ordinance wording indicating residential collection services would be suspended during weeks that begin with a Monday of a 5th week; operational efficiency, and delivery of services overall in conjunction with assessment of fees. Mr. Elias clarified that the language contained in Section 8.44.050, Subsection B.1. indicates the City may suspend services during that time frame, with proper notice, to provide for staff training or equipment maintenance. Main motion as amended by substitute carried. Voting “yes” -- all members of the governing body with the exception of Ms. Ash, Ms. Broyles and Mr. Collins voting “no”.

“An Ordinance amending various sections of Chapter 5.36, Circuses, Carnivals, Exhibitions, and Amusement Rides, within Title 5, Business Licenses and Regulations, of the Cheyenne City Code” -- referred to Finance Committee. (Sponsor - Mr. Brown)

“An Ordinance submitting to the qualified property owners of real property within the boundaries of the Cheyenne Downtown Development Authority District of Cheyenne, Wyoming, excluding real property used exclusively for residential purposes, at a Special Election on Tuesday, May 10, 2011, the following question: ‘Shall a special assessment of ten

(10) mills be levied upon the assessed value of real property within the boundaries of the Cheyenne Downtown Development Authority District, excluding real property used exclusively for residential purposes, for a period of four (4) years pursuant to the provisions of Wyo. Stat. §15-9-217 (b) and (c) for the purposes of (1) administrative costs; (2) landscaping or maintenance of public areas; (3) planning or management of development or improvement activities; (4) promotion of public events; and (5) activities in support of business recruitment and development?” -- referred to Finance Committee. (Sponsors - Mr. Allen and Dr. Rinne)

“An Ordinance De-Annexing from the City of Cheyenne, a parcel of land situate in a portion of the south half of Section 29, T.14 North, R. 65 West, 6th P.M., City of Cheyenne, Laramie County, Wyoming, containing 37.0 acres, more or less (located in the vicinity North of Interstate 80, East of East Pershing Boulevard, and East of the KOA Campground area)” -- referred to Public Services Committee. (Sponsors - Mr. Brown and Mr. Spiker)

[CA] “A Resolution authorizing a street name change from Logan Avenue to Campbell Avenue for the portion of the street originally platted in Kelley’s Addition as Fairview Avenue and later known as Logan Avenue, located between East 9th Street and East 10th Street, located in Kelley’s Addition to the City of Cheyenne, Laramie County, Wyoming.” (Postponed from Feb. 14, 2011). Motion (per Consent Agenda) carried. (#5259)

“A Resolution whereby the Governing Body of the City of Cheyenne authorizes a Special Cheyenne Downtown Development Authority District Election to be held May 10, 2011 as provided by Wyo. Stat. §15-9-217 (b) and (c) which, upon affirmative majority vote of the qualified voters within the district, will authorize a special assessment of ten (10) mills upon real property within the district, excluding real property used exclusively for residential purposes, for a period of four (4) years.” Mr. Valdez moved to adopt, seconded by Mr. Collins. Comment was expressed regarding operational concerns involving the DDA organization. Upon inquiry, Brett Jones, Chairman, DDA Board, stated estimated funding received from the last effective mill levy 4-year assessment was approximately \$160,000 per year. Motion carried. Voting “yes” -- all members of the governing body with the exception of Ms. Ash voting “no”. (#5260)

“A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Goins Elementary School, a replat of Civitan Park and Civitan Place (60' Right-of-Way), Arp Addition, 5th Filing (as vacated); and Block 66, Interior Heights Addition, to the City of Cheyenne; situated in the NW¼ of Section 7, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of and adjacent to Leisher Road, between Dey and Cribbon Avenues).” To avoid any appearance of impropriety, Ms. Ash declared a conflict of interest (family owned property in the near vicinity), and vacated Council Chambers. Mr. Collins moved to adopt with staff recommendations #1 and 2, seconded by Ms. Broyles. Upon inquiry regarding use of 1% 5th penny funds to upgrade 7th Street, Mayor Kaysen advised he held an internal meeting with engineering staff to look at a City non-dedicated street to make safety improvements. Comments followed on governing body approval of road projects built with 5th penny sales tax dollars and state law requirements; City and school district trade of properties involving the new Goins school area; 1% project approval process; whether the City committed to the school district that it would pay for the road work, and developer responsibility to build roads in conjunction with a project. During additional comments, Mayor Kaysen advised the governing body approves

overall funding amounts utilizing 5th penny funds for street projects, but that there are many projects involving 5th penny funding that are approved administratively, citing examples of recent projects and noting the 7th Street work would be scheduled for 2012 and the governing body will have the opportunity to act upon the contract to be let involving contractor services. Following further comment expressing concern with administrative approval of projects funded by 5th penny sales tax, motion to approve carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5261)

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to accomplish the Dry Creek Sewer Line Project - Yellowstone Road to Mylar Park.” Motion (per Consent Agenda) carried. (#5262)

[CA] “A Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Ridge Road Traffic Signal Replacement Project.” Motion (per Consent Agenda) carried. (#5263)

[CA] “A Resolution prioritizing the City of Cheyenne’s two applications to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for Mineral Royalty Capital Construction Account (Chapter 3) Funds.” Motion (per Consent Agenda) carried. (#5264)

[CA] “A Resolution authorizing the submittal of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving fund for an amount not to exceed \$9,400,000.00 for the Southern Water Transmission Main - Phase II Project and authorizing the Director of the Board of Public Utilities to execute the application and all related loan documents” -- referred to Finance Committee. (Sponsors - Mr. Brown, Mr. Pierson, Mr. Spiker, Mr. Valdez)

[CA] “A Resolution authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan program, for funding through the Managed Data Center Cost Reduction Grant program -- referred to Finance Committee. (Sponsors - Mr. Allen, Mr. Brown, Dr. Rinne)

[CA] Professional Services Agreement between the City of Cheyenne and RRT Design & Construction for design and construction administration of a Construction and Demolition Recycling Material Processing System (State Lands & Investments Board/Solid Waste funds. Motion (per Consent Agenda) carried (amount not to exceed \$174,397.00). (#5641)

Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for enrichment activities and to provide an outreach program for youth at Carey Junior High. Ms. Ash declared a conflict of interest (due to employment involvement with funding) on this item as well as the next agenda item, and vacated Council Chambers. Mr. Valdez moved to approve, seconded by Mr. Brown. Motion carried. Voting

“yes” -- all members of the governing body present in Council Chambers. (#5642)

Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for enrichment activities and to provide an outreach program for youth at Johnson Junior High School. Mr. Valdez moved to approve, seconded by Mr. Brown. Upon inquiry whether a similar opportunity will be provided at McCormick Jr. High School, Dr. Dick Berry, Assistant Director, Youth Alternatives, advised the program has evolved through acquisition of grant funding and explained program inception began with Johnson Jr. High School and as more grant monies have become available it is being extended to Carey Jr. High School. He stated if additional funding becomes available in the future, expansion of services to McCormick Jr. High School would be supported. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Ash returned to Council Chambers. (#5643)

[CA] Community Based Family Support and Preservation Grant Contract between the City of Cheyenne, Youth Alternatives, and the Wyoming Department of Family Services, Protective Services Division, for counseling services to families involving youths returning from out-of-home placement. Motion (per Consent Agenda) carried. (#5644)

[CA] Grant Agreement between the City of Cheyenne and the State of Wyoming, Department of State Parks and Cultural Resources, State Historic Preservation Office, for a Downtown Strategic Action Plan. Motion (per Consent Agenda) carried. (#5645)

[CA] Agreement between the City of Cheyenne and Western Area Power Administration for compensation of actual costs for the City to perform a comprehensive hydrology study of drainage impacts from construction of a new electric sub-station located near McFarland Avenue and Walterscheid Boulevard. Motion (per Consent Agenda) carried. (#5646)

[CA] Contract between the City of Cheyenne, Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for Phase II State salary funds -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Clear Creek Land Company, LLC, Swan Ranch, LLC, and Granite Peak Development, LLC, to specify infrastructure financing, timing of annexation, timing of community facilities fee payment, and access standards to support economic development efforts in Cheyenne (Annexation Revolving Loan and 2007-2010 1% Sales Tax funds) -- referred to Finance Committee.

[CA] Contract to purchase land within the Swan Ranch property pursuant to a Development Agreement with Granite Peak Development, LLC (Community Facilities fees) -- referred to Finance Committee.

[CA] Amendment No.1 to Contract No. 5381 Cooperative Agreement between the City of Cheyenne and Wyoming Department of Transportation for West Lincolnway enhancements -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5377 between the City of Cheyenne, Sanitation Division, and Alpine Waste and Recycling for sorting, processing and marketing of single stream (recyclable) materials -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5220 between the City of Cheyenne, Sanitation Division, and Tatooine Electronic Systems for the recycling of electronic waste -- referred to Finance Committee.

[CA] Amendments No. 3 and No. 4 to Contract No. 5516 between the City of Cheyenne and Long Building Technologies, Inc. to continue energy efficient upgrades including improvements to heating and controls in the Municipal Building, Civic Center, Police Department, Fire Station #1, Fleet Maintenance, Tire and Lube Shop, Logan Avenue Shop, Street and Alley Shop and Cemetery Shop (Energy Grant funds) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5513 between the City of Cheyenne and Reiman Corp. for General Contracting Services - East Cheyenne Greenway - Phase IIIb (Greenway fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-20-11 for furnishing three new 2011 full size 4x4 one ton pickup trucks for the Parks and Forestry Divisions from Spradley Barr Motors of Cheyenne, Wyoming (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$85,560.00).

[CA] Consideration of Bid #R-21-11 for furnishing 76 new computers and operating systems for the City of Cheyenne, Information Technology Division (2007-2010 1% Sales Tax Capital Equipment fund) -- referred to Finance Committee.

[CA] Consideration of Bid #M-8-11 for a contract between the City of Cheyenne and Superior Electric, Cheyenne, Wyoming, for the Brimmer Park Lighting Correction project (Partial 2007-2010 1% Sales Tax and Energy Grant funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-7-11 for a contract between the City of Cheyenne and Scotch Boy, Inc., Cheyenne, Wyoming, for the David R. Romero South Cheyenne Youth Activity and Community Center project (Partial Community Facility fees and donations) -- referred to Finance Committee.

[CA] Consideration of Bid #R-22-11 for furnishing one new rough mower from Greenline Equipment, Casper, Wyoming, for the Grounds and Facilities Division (2007-2010 1% Sales Tax Capital Equipment fund) -- referred to Finance Committee.

Announcement was made of the appointment of Katherine Maggos, KaSandra Camp, Como Boyle, Michael Sandidge and Mark McKay, to the Mayor's Council for People with Disabilities, to be confirmed March 14, 2011.

Announcement was made of the re-appointment of James Ditsch, Daryl Hensel and Jason Lewis to the Mayor's Council for People with Disabilities, to be confirmed March 14, 2011.

[CA] Request to change retail liquor dispensing room location and dimensions for Cloud 9, Inc. d/b/a Cloud 9, 300 East 8th Avenue, Cheyenne, Wyoming -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held March 14, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to hear public comment regarding the intent of the City of Cheyenne to submit an application for funding for the Wyoming Business Council's Business Ready Community Grant and Loan, Managed Data Center Cost Reduction Program, to assist in the establishment of a Data Center, funding electricity and broadband expenses for three years.

Under other City business:

John Palmer expressed his concerns with the public participation format utilized at City Council meetings, requesting Council members consider changing the process, and the ability to find agenda information on the City's website. Comment was made later under other business that meeting agenda information is also available through staff at the Municipal Building.

Don Threewitt, State Historic Preservation Board, provided a brief update on the Board's activities and projects, and invited members of the governing body to a Board Strategic Planning session to be held on March 12, 2011. Mayor Kaysen requested Mr. Threewitt submit details on the meeting place and time that would be shared with City Council members.

Upon inquiry regarding a letter Council members received from Safehouse, Dan White, City Attorney, provided information regarding the lease of City-owned land to Attention Homes and discussions held between Attention Homes and Safehouse relative to assignment of the property lease to Safehouse. He stated his concerns with assignment of the lease without City approval, noting assignment requirements contained in the existing lease, terms of the lease regarding ownership of buildings that have been placed upon the City's property, and services that are to be provided (i.e. youth crisis services) at the site. He indicated communication was made with Safehouse representatives encouraging review of lease provisions with the City, and discussed research conducted regarding ownership of permanent fixtures that have been placed on the property. He noted one building on the site was constructed with grant funds for the specific purpose of providing youth crisis services by Attention Homes. He further stated that he had presented a proposed lease to Safehouse for consideration to submit to the City Council for approval but that Safehouse "did not agree" and the assignment of the property lease from Attention Homes to Safehouse has occurred. Upon inquiry, he reviewed possible options on how to potentially proceed regarding assignment of the lease.

There being no further other business, City Attorney Dan White requested the governing body meet in executive session for the sole purpose of discussing a potential lawsuit against Laramie County to challenge the validity of recently approved County subdivision regulations. Mr. Pierson moved to meet in executive session, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body. Mayor Kaysen announced members would meet in executive session in Council Chambers, not open to the public; requested the City Attorney, City Clerk, and other persons approved by the City Attorney, be present at the executive session, and stated there would be no action taken by the governing body as a result of

the executive session and that the regular City Council meeting would officially adjourn following closure of the executive session. (Clerk's Note: Executive session convened at 9:22 p.m.; Ms. Ash vacated Council Chambers prior to the executive session being convened and was not present during the session.)

The meeting was officially adjourned at 9:55 p.m. following closure of the executive session.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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